

**Court No. - 37**

**Case :-** WRIT - C No. - 15571 of 2014

**Petitioner :-** M/S Threads India Limited & Another

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Ltd. & 2 Others

**Counsel for Petitioner :-** Mayank Agrawal

**Counsel for Respondent :-** Baleshwar Chaturvedi, A.N. Singh

**Hon'ble Vineet Saran, J.**

**Hon'ble Attau Rahman Masoodi, J.**

Connect and list with Writ Petition (C) No. 51884 of 2009.

Heard learned counsel for the petitioner as well as Sri Baleshwar Chaturvedi, learned counsel for the respondents no. 1 and 2 and Sri A.N. Singh for the respondent no. 3.

By means of this writ petition, the petitioners have prayed for quashing the demand notice for Nov 2013 issued by respondent No. 2. Learned counsel for the petitioner submits that additional security has been asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioners submits that similar writ petitions have been entertained and interim orders have been passed by this Court. Reference has been made to the order dated 7.10.2009 in Writ Petition No. 51844 of 2009 (M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others).

Learned counsel for the respondents submits that in several matters identical questions are involved.

In view of the interim order as already granted in writ petition

No. 51884 of 2009 referred to above and without prejudice to the right and contention of the parties, it is provided that until further orders of this Court the respondents are restrained from demanding additional security from the petitioners which shall be subject to the final order by this Court

**Order Date :- 12.3.2014**

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(Attau Rahman Masoodi, J.) (Vineet Saran, J.)

**Court No. - 32**

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**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Ltd. & 2 Others

**Counsel for Petitioner :-** Mayank Agrawal

**Counsel for Respondent :-** Baleshwar Chaturvedi, A.N. Singh

**Hon'ble Arvind Kumar Tripathi, J.**

**Hon'ble Salil Kumar Rai, J.**

Learned counsel for the petitioner and respondents informed that identical matter has been considered by the coordinate Bench of this Court and the petition has dismissed.

This petition has been filed for quashing of the impugned bill dated 21.2.2014 to the extent of Rs.54,74,938/- issued by the respondent no.2 with further prayer to direct the respondents to pay interest at bank rate since the inception of the petitioner's unit on the security amount already deposited by the petitioner and further prayer is to direct the respondents to refund the security amount already deposited by the petitioner with further prayer to direct in the nature of mandamus declaring Clause 4.20 (i) (L) of the amended Code (amended vide order dated 14.9.2006 by the respondent no.3, notified by the State Govt. on 11.8.2006) as illegal and ultravires Section 47(5) & 47 (4) of the Electricity Act, 2003 with further prayer to issue direction in the nature of mandamus declaring Clause 4.20 (i) of the amended Code (amended with effect from 14th September, 2006) as retrospective in application/operation with effect from 10 June, 2003 (i.e. promulgation of the Electricity Act, 2003).

It is pointed out by learned counsel for the parties that the issues raised in this petition have been decided against the petitioner in Writ-C No.30898 of 2016 (M/s Dev Prayag Paper Mill (Pvt.) Vs. State of U.P. & Ors.) by judgment and order dated 21 March, 2017 whereby this Court has dismissed the writ petition after coming to the conclusion that the demand of additional security by the distribution licensee is not bad.

For all the reasons stated in the aforesaid judgment, this petition stands dismissed.

**Order Date :-** 19.12.2017

Pramod